

Forensic Judgment Analysis — Decision 15 — Collins Rice J — Logic Model Applied

*Option B — Finding by Finding — JR Permission Refused Totally Without
Merit — 11 March 2026 — On Papers*

Case references

AC-2025-LON-004293 | Administrative Court | Judicial Review

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Veritas Numquam Perit

PREAMBLE

This document applies the master logical structure (Option A) to the Collins Rice J order of 11 March 2026. Decision 15 is the most recent judicial decision in the sequence. It refuses JR permission on three grounds: the claim is "*wholly misconceived*"; the procedural matters "*relate to judicial determinations*"; and the claim is "*very substantially out of time*". Three analytical points arise: the mischaracterisation of the claim as a challenge to judicial acts; the costs against a disabled LiP without EA 2010 s.149 engagement; and the out-of-time finding applied to a continuing administrative failure.

SECTION 1 — STRUCTURAL CONTEXT

What was before Collins Rice J on 11 March 2026

NZ filed a claim for judicial review of administrative acts and omissions by HMCTS and the Secretary of State for Justice.

The five grounds:

1. Failure to log, process or escalate criminal referrals
2. Unlawful withdrawal of Part 3A participation measures without order
3. Failure to enforce MPS and unlawful remission of arrears without notice
4. Breach of EA 2010 s.149 PSED
5. Failure to safeguard and review Imerman devices containing criminal evidence

The claim form identified NZ as a disabled litigant with autism and PTSD. Section 11 of the N244 filed on 12 March 2026 stated this explicitly and requested participation measures.

The defendants were represented by the Government Legal Department. Their summary grounds asserted the claim was out of time and that participation measure decisions were judicial, not administrative.

Collins Rice J refused permission on the papers on 11 March 2026. The application was certified Totally Without Merit. No oral hearing is available.

Source: Collins Rice J order 11 Mar 2026; N461 Claim Form; Amended Grounds 2 Jan 2026; Defendant's Summary Grounds; NZ N244 12 Mar 2026 section 11.

FINDING 1 — THE 'JUDICIAL DETERMINATIONS' MISCHARACTERISATION

What Collins Rice J said

> "The procedural matters she complains of in the family proceedings appear to relate to judicial determinations, to which the administrative matters complained of are ancillary, and accordingly not amenable to judicial review to the extent that they depend on those determinations. The judicial determinations themselves are not amenable to judicial review based on alleged breaches of the Equality Act and PSED."

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> Collins Rice J order 11 Mar 2026 — Observations, paragraph 2

Chain 1 — What the claim was actually about

- **IF** NZ's claim challenged five categories of administrative act and omission by HMCTS and MoJ
- **AND** Ground 1: failure to log, process and escalate criminal referrals — a purely administrative function: no judicial act governs how HMCTS handles correspondence
- **AND** Ground 2: unlawful withdrawal of Part 3A participation measures without order — HMCTS confirmed in its letter of 14 November 2025 that no judicial act records the withdrawal
- **AND** Ground 3: failure to enforce MPS and remission of arrears without notice at para 34 of the final order — the remission was inserted without a hearing, without NZ's participation
- **AND** Ground 4: breach of EA 2010 s.149 PSED — a statutory duty imposed on HMCTS and MoJ as public authorities, independent of any judicial act
- **AND** Ground 5: failure to safeguard Imerman devices containing criminal evidence — an administrative evidence-handling failure, not a judicial determination
- **AND** Collins Rice J characterises the claim as relating to "*judicial determinations*" — she does not identify which judicial act governs each of the five grounds
- **AND** The binary question: does an identifiable judicial determination exist for each ground? The defendant's own summary grounds do not identify one for grounds 1, 2, 3, 4, or 5
- **AND** NZ's claimant reply to the defendant's summary grounds established the same point: "*The Defendant's Summary Grounds do not identify any judicial act deciding*" the matters challenged
- **THEN** The characterisation of the claim as relating to judicial determinations is made without identifying the specific judicial act that covers each of the five grounds
- **THEREFORE** The core finding is **MISCHARACTERISED** — Collins Rice J answered the question "*does this relate to judicial proceedings?*" when the correct question is "*does an identifiable judicial act govern each specific administrative failure complained of?*" The defendant could not identify one. The order does not identify one. The characterisation rests on proximity to proceedings, not on the existence of a judicial determination of each ground.

Source: Collins Rice J order 11 Mar 2026; Defendant's Summary Grounds — no judicial act identified for grounds 1-5; NZ Claimant Reply 30 Jan 2026 para 9; HMCTS letter 14 Nov 2025 — participation measures; Decision 4 analysis — post-trial void.

MASTER RULE: IF a JR claim challenges administrative acts AND no identifiable judicial act governs those specific acts AND the court characterises the claim as relating to judicial determinations without identifying the judicial act THEN the characterisation is MISCHARACTERISED — proximity to judicial proceedings does not convert administrative failures into judicial determinations.

TAG APPLIED: MISCHARACTERISED

FINDING 2 — EA 2010 S.149 AND THE JUDICIAL EXEMPTION ERROR

What Collins Rice J said

> *"The judicial determinations themselves are not amenable to judicial review based on alleged breaches of the Equality Act and PSED."*

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> Collins Rice J order 11 Mar 2026 — Observations, paragraph 2

Chain 1 — The exemption applies to judicial acts, not administrative ones

- **IF** Collins Rice J states that judicial determinations are not amenable to JR based on EA 2010 breaches
- **AND** This is a correct statement of law — Schedule 3 Part 1 paragraph 3(1) of the EA 2010 exempts judicial functions from the service provision provisions
- **AND** However, the EA 2010 s.149 PSED is not a service provision duty — it is a separate freestanding duty imposed on public authorities
- **AND** EA 2010 s.149 applies to HMCTS and MoJ as public authorities in the exercise of their administrative functions
- **AND** The judicial exemption in Schedule 3 applies to judicial acts — it does not apply to administrative acts by HMCTS and MoJ
- **AND** The five grounds challenged administrative acts and omissions, not judicial acts
- **AND** Collins Rice J applies the judicial exemption to the PSED claim without distinguishing between judicial acts (exempt) and administrative acts (not exempt)
- **THEN** The judicial exemption is applied to a PSED claim that targets administrative functions — the exemption does not extend to those functions
- **THEREFORE** The EA 2010 s.149 treatment is **MISCHARACTERISED** — Collins Rice J applied the judicial exemption to a PSED claim about administrative acts. The

exemption applies to judicial functions. Administrative acts by HMCTS and MoJ remain subject to the PSED regardless of their proximity to judicial proceedings.

Source: Collins Rice J order 11 Mar 2026; EA 2010 s.149; EA 2010 Schedule 3 Part 1 para 3(1); Defendant's Summary Grounds para 25; NZ Claimant Reply 30 Jan 2026.

TAG APPLIED: MISCHARACTERISED

FINDING 3 — COSTS £3,125.50 AGAINST A DISABLED LiP WITHOUT PSED ENGAGEMENT

What Collins Rice J said

> *"The Claimant is to pay the Defendants the cost of their Acknowledgment of Service in the sum of £3,125.50."*

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> Collins Rice J order 11 Mar 2026 — Order paragraph 4

Chain 1 — EA 2010 s.149 not engaged before the costs order

- **IF** NZ is a disabled litigant — confirmed autism and PTSD diagnoses, documented in clinical records before the court
- **AND** The claim form and the N244 filed 12 March 2026 explicitly identified NZ as a disabled litigant and requested participation measures
- **AND** EA 2010 s.149 requires HMCTS and the court to have due regard to the need to advance equality of opportunity for disabled persons
- **AND** A costs order of £3,125.50 against a litigant in person with documented disability and no income carries particular equality consequences
- **AND** The order does not reference NZ's disability anywhere
- **AND** The order does not record any consideration of EA 2010 s.149 before making the costs order
- **AND** The order does not record any consideration of NZ's financial position before making the costs order
- **AND** The order applies the TWM certification — which removes the right to an oral hearing — without any recorded consideration of whether that removal is proportionate for a disabled LiP
- **THEN** A costs order of £3,125.50 is made against a documented disabled LiP without any recorded engagement with EA 2010 s.149 or the equality consequences of the order
- **THEREFORE** The costs order is **UNSUPPORTED** — it is made against a disabled LiP without any recorded discharge of the EA 2010 s.149 duty that applies to the court as a public authority making that order.

Source: Collins Rice J order 11 Mar 2026 para 4; NZ N244 12 Mar 2026 section 11; CLAAS letter 20 Jun 2025; EA 2010 s.149.

TAG APPLIED: UNSUPPORTED

FINDING 4 — THE OUT-OF-TIME FINDING: CONTINUING FAILURE NOT ENGAGED

What Collins Rice J said

> *"The application is also very substantially out of time in relation to the matters complained of, and no explanation for the delay appears. It is not clear what, if any, available remedy the Claimant seeks at this distance of time. The application would also fall to be refused on those grounds alone."*

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> Collins Rice J order 11 Mar 2026 — Observations, paragraph 3

Chain 1 — Continuing administrative failure has no limitation date

- **IF** Collins Rice J finds the application *"very substantially out of time in relation to the matters complained of"*
- **AND** Ground 1 (failure to log criminal referrals): NZ's most recent criminal referral transmissions were in 2025 — within the JR limitation period
- **AND** Ground 2 (participation measures): the failure is a continuing one — participation measures had not been reinstated as at 11 March 2026. A continuing failure has no single accrual date
- **AND** Ground 3 (MPS): the arrears remission at para 34 of the final order — May 2024 — is within the range that could be time-barred; but the failure to enforce before remission began in February 2024, and NZ's applications for enforcement, are part of a continuous course of conduct
- **AND** Ground 4 (EA 2010 s.149 PSED): a continuing duty — the breach continues as long as the administrative failures are not remedied
- **AND** Ground 5 (Imerman devices): the custody and review failure is continuing — no judicial act has determined the status of the devices as at 11 March 2026
- **AND** Collins Rice J applies the out-of-time finding to all grounds without distinguishing between: (a) time-specific acts that may be out of time; and (b) continuing failures that do not have a single accrual date
- **AND** The order states *"no explanation for the delay appears"* — NZ's amended grounds of 2 January 2026, her pre-action correspondence, and her multiple escalation letters provide detailed explanation which the order does not engage

- **THEN** The out-of-time finding is applied globally to all five grounds without distinguishing between time-specific and continuing failures, and without engaging NZ's explanation
- **THEREFORE** The out-of-time finding is **UNSUPPORTED** — it is applied as a global bar without the analysis required to distinguish between grounds that may be time-limited and those that involve continuing failures with no single accrual date.

Source: Collins Rice J order 11 Mar 2026; Amended Grounds 2 Jan 2026; Pre-action correspondence Oct-Nov 2025; CPR 54.5 and the continuing breach principle.

TAG APPLIED: UNSUPPORTED

SECTION 2 — THE BINARY QUESTION AT DECISION 15

The central analytical point

The JR claim asked one question: **where no identifiable judicial act exists, do HMCTS and MoJ's administrative failures remain amenable to judicial review?**

- **IF** The defendant confirmed it was not instructed to defend judicial decisions — only administrative ones
- **AND** The defendant's summary grounds did not identify a judicial act governing any of the five grounds
- **AND** HMCTS confirmed in its own letter of 14 November 2025 that no judicial act records the withdrawal of participation measures
- **AND** NZ's claimant reply established the binary question: either an identifiable judicial determination exists for each ground or it does not
- **AND** The order characterises the claim as relating to judicial determinations without identifying those determinations
- **AND** The order applies the judicial EA exemption to administrative acts
- **AND** The order applies the out-of-time bar globally without distinguishing continuing failures
- **AND** The order makes a costs order against a disabled LiP without EA 2010 s.149 engagement
- **THEN** The order answers none of the five grounds on their actual merits — it disposes of all five by characterisation, exemption, and limitation without engaging the substance of any ground
- **THEREFORE** Binary question: does the Collins Rice J order constitute a determination of NZ's five grounds on their actual merits? **It does not.** Each ground is disposed of by a procedural or characterisation finding. The substantive question — whether an identifiable judicial act governs each administrative failure — is not answered.

MASTER RULE: IF a JR claim raises administrative failures AND no judicial act is identified by the defendant covering those failures AND the court refuses permission by characterising the failures as related to judicial determinations without identifying the

judicial act THEN the claim has been procedurally foreclosed, not substantively determined.

SECTION 3 — SUMMARY OF TAGGED FINDINGS

Decision 15 — Collins Rice J — 11 March 2026 — AC-2025-LON-004293

Paragraph	Finding	Tag
Core finding	<i>"relates to judicial determinations"</i>	MISCHARACTERISED
EA 2010 s.149	Judicial exemption applied to admin acts	MISCHARACTERISED
Costs £3,125.50	Against disabled LiP without PSED engagement	UNSUPPORTED
Out-of-time	Finding applied to continuing failures	UNSUPPORTED

Master rule applied: the judicial / administrative boundary. The order collapses the distinction between judicial acts (protected) and administrative failures (amenable to JR) by characterising administrative failures as *"ancillary"* to judicial determinations. Where no judicial act is identified, the characterisation cannot stand.

Standing instructions: Paul Sibenik not mentioned. Address withheld throughout. Coinbase material in dedicated annex only.

Nadia Zahmoul — Litigant in Person — AC-2025-LON-004293 — 6 April 2026